

23CMCV01427 23CMCV01427

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-09-09

Motion: DEFENDANT'S MOTION TO TAX COSTS

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Case Number: 23CMCV01427 Hearing Date: September 9, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

MARLON MCCALLA,

Plaintiff,

vs.

MARIE

FINLEY,

Defendant.

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CASE NO: 23CMCV01427

[TENTATIVE]

ORDER RE: DEFENDANT'S MOTION TO TAX COSTS

Dept.

A

DATE:

September 9, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 09/01/2023

DISPOSED:

06/15/2026

MOVING

PARTY: Defendant Marie Finley

RESPONDING

PARTY: Plaintiff Marlon McCalla

1.

Background

This is a partition action. Plaintiff Marlon McCalla ("Plaintiff") alleged that they and defendant Marie Finley ("Defendant") were tenants in common, each with an undivided one-half ownership, for the property located at 616-618 E. 118th Place, Los Angeles, CA 90059 (the "Property"). Plaintiff sought partition by sale of the Property.

On June 15, 2026, the court entered judgment for Plaintiff and against Defendant in the amount of \$20,000.

2.

Discussion

Defendant moves to tax Plaintiff's memorandum of costs. Defendant contends that Plaintiff failed to provide evidence of their costs. In opposition, Plaintiff contends that it is Defendant's burden to establish that the costs were unreasonable or unnecessary.

"In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face. 'If so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.' (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131 (Nelson).) Where costs are not expressly allowed by the statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary. (Id. at p. 132.) 'Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed by abuse of discretion.'" (Foothill-De Anza Community College Dist. v. Emrich (2007) 158 Cal.App.4th 11, 29-30; citing Ladas v. California State Auto. Ass. (1993) 19 Cal.App.4th 761, 774.) "[I]f the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Melnyk v. Robleto (1976) 64 Cal.App.3d 618, 624.)

Defendant

contends that, by bringing the instant motion to tax Plaintiff's costs, Defendant has properly objected to Plaintiff's costs and shifted the burden of proof to Plaintiff. However, if the costs appear proper on their face, in order to carry her burden, Defendant must make some showing challenging the reasonableness or necessity of Plaintiff's costs. (Oak Grove School Dist. of Santa Clara County v. City Title Ins. Co. (1963) 217 Cal.App.2d 678, 699) The mere fact of filing a motion to tax costs is insufficient to carry Defendant's burden.

Where

costs appear proper on their face, the initial burden is on the challenging party to show that those costs were not necessary or reasonable. However, where costs do not appear to be proper, the initial burden is on the party requesting costs to show that they were reasonably and necessarily incurred. (Ibid.)

Here,

Plaintiff has requested \$1,111.95 in filing and motion fees, \$940.1 in service fees, \$1,403.01 in electronic filing and service fees, and \$109 in "other" fees. Filing and motion fees, service fees, and electronic filing and service fees are expressly allowed by Code of Civil Procedure § 1033.5, and are therefore proper on their face, irrespective of a lack of itemization in the memorandum of costs. As such, the burden of showing that these fees were not reasonably or necessarily incurred is on Defendant, and as previously noted, Defendant has not carried this burden.

However,

unspecified "other" fees are not proper on their face, such that the burden is on Plaintiff to show that these fees were reasonably and necessarily incurred. In their opposition, Plaintiff contends that this fee was for the recordation of a notice of pendency. This fee is neither expressly allowed nor disallowed by Code of Civil Procedure § 1033.5. However, a plaintiff is required by statute to record a notice of pendency with the county recorder after filing a complaint for partition. (Code of Civil Procedure § 872.250.) The court therefore finds this cost was reasonably and necessarily incurred.

3.

Conclusion

Based

on the foregoing, the court DENIES Defendant's motion to tax Plaintiff's memorandum of costs. Defendant is ordered to give notice.

DATED: September 9, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court